FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

U.S. BANK TRUST NATIONAL ASSOCIATION, NOT IN ITS INDIVIDUAL CAPA CITY BUT SOLELY AS OWNER TRUSTEE FOR RCF 2 ACQUISITION TRUST

Plaintiff,

Index No. 130509/2012

-against-

THE UNKOWN HEIRS-AT-LAW, NEXT OF KIN, DISTRIBUTEES, EXECUTORS, ADMINISTRATORS, TRUSTEES, DEVISEES, LEGATEES, ASSIGNEES, LIENORS, CREDITORS, AND SUCCESSORS IN INTEREST, AND GENERALLY ALL PERSONS HAVING OR CLAIMING, UNDER, BY OR THROUGH THE DECEDENT GISELE REVIVO BY PURCHASE, INHERITANCE, LIEN OR OTHERWISE, ANY RIGHT TITLE OR INTEREST IN AND TO THE PREMISES DESCRIBED IN THE COMPLAINT HEREIN; ET. AL,

MORTGAGED PROPERTY:37 DREYER AVENUE STATEN ISLAND, NY 10314 COUNTY: Richmond

Defendant.

BL #: 2086-1008
Sale Date: February 5, 2026 at 10:00AM

A. **To be completed by the Referee**

1. Final Judgment Amount per Judgment: $606,668.74
2. Adjusted Judgment Amount (Upset Price): $ 562,500.00
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 562,501.00
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ TBD

***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $

Referee Name: Christopher J. Fitzpatrick Telephone: 718-442-4600
Address: 235 Forest Avenue, Staten Island, N.Y. 10301
Email: cjfesq@hotmail.com Signature/Date: 2/5/26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Terence Gee
Address: 144-36 70th Avenue, Flushing, N.Y. 11367
Telephone: 718-969-0112
Email Address:
Signature and Date: 2-5-26

C. To be completed by Purchaser

Name: Eliyahu Sibag
Address: 37 Dreyer Ave. Apt 37, S.I., N.Y. 10314
Telephone: 718 7958045
Email Address: EliyahuSibag@AOL.com
Signature and Date: